

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CHILE

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Chile, grounded in the environmental-assessment, enforcement, and specialised-court system and documented campaigns

This guide uses the Chilean legal terms you will actually encounter (the SEIA, the RCA, the SMA, the Tribunales Ambientales, and so on), each defined on first use and in the Glossary. It describes the national framework; the regions and municipalities have their own roles — check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in parentheses right where you first meet it — no flipping to the back required.

A note on money. Budgets in this guide are in Chilean pesos (CLP).

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Chile. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. When two energy companies proposed five megadams on the wild **Baker and Pascua** rivers in Patagonia, a broad coalition — under the banner **Patagonia Sin Represas (“Patagonia Without Dams”)** — spent years documenting the flawed environmental study, filing thousands of public observations, and fighting in the courts; in 2014, after the largest environmental struggle in the country's history, the **Committee of Ministers cancelled the project's environmental permit**. Across the country, communities using **citizen participation**, the **environmental-permit appeal**, the specialised **Environmental Courts**, and the powerful **environmental enforcer (the SMA)** have forced projects to be refused, sanctioned, halted, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They file one observation, then give up. They assume “the authority will refuse it” without building public pressure, documenting the harm, or challenging the permit. They generate coverage without a strategy. They organise people and then lose them to burnout after a few months.

This guide shows what actually works — in the Chilean system.

If You're New to This — Don't Be Shy

Nobody is born knowing how an environmental assessment works. The communities in this guide weren't experts when the projects landed on them — they learned it, meeting by meeting, filing by filing, because the thing at stake was theirs. That is the only qualification this work requires.

So if this is your first fight: don't worry, and don't be shy. You are allowed to file comments, demand documents, call reporters, and pack a hearing. The participation windows exist for you, not for specialists. You will make mistakes; every winning campaign did. Start small — one conversation, one document request, one meeting — and let the guide carry you from there. You want it? Go and get it.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (participation / appeal / courts / enforcer)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: Chile gives communities a distinctive, institution-heavy set of levers. A project that may cause significant impact must pass the **environmental assessment system (SEIA)**, ending in an **environmental permit (RCA)** — a process with a formal **citizen participation (participación ciudadana)** stage where your observations must be answered. If the permit is granted, you can challenge it — first by **administrative appeal to the Committee of Ministers**, then before a specialised **Environmental Court (Tribunal Ambiental)** — or, for a constitutional breach, by a **recurso de protección** (the constitutional protection action (Article 20) to defend the right to live in an environment free from contamination (Article 19 No. 8)). And a distinctively powerful **environmental enforcer, the Superintendency of the Environment (SMA)**, supervises compliance and can **fine, suspend, revoke the permit, or shut a project down**. No Chilean campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because Chile depends heavily on mining and other extraction, because regions and municipalities want investment and jobs, or because the developer's own consultants prepare the environmental study.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins refusals, sanctions, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undisclosed conflict of interest, the offences the oversight bodies handle — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Chile, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Chile is a unitary state with a national government, 16 regions, and 345 municipalities — and a dense, specialised environmental institutional framework.

- **National government** — the **Ministry of the Environment (Ministerio del Medio Ambiente)** sets policy; the

Environmental Assessment Service (SEA) administers the assessment system and issues the **environmental permit (RCA)**; the **Superintendency of the Environment (SMA)** enforces compliance; and the **Committee of Ministers (Comité de Ministros)** hears appeals against permits.

- **Regions** — the **Regional Environmental Evaluation Commissions (Comisiones de Evaluación Ambiental)** decide the permit for regional projects; the regional offices of the SEA and SMA operate here.
- **Municipalities** — control **local land-use planning (the plan regulador comunal)** and take part in the assessment.

So which body decides *your* project? - A mine, power plant, dam, port, factory, or big development → the **environmental assessment (SEIA)**, ending in an **RCA** decided by the **Regional Commission** (or the SEA's Executive Directorate for interregional projects). - Compliance and sanctions once it operates → the **SMA**. - Anything affecting an **Indigenous people** → their **consultation (consulta indígena)**, under ILO Convention 169.

The expert and decision bodies

- **The SEA** — runs the assessment and issues the **RCA**.
- **The regional commissions, sector agencies, and independent experts** — evaluate and assess effects.
- **The SMA, the Environmental Courts, and the oversight bodies** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the permit journey

For a project that may cause significant impact, the developer must pass the **SEIA** and obtain an **RCA**:

1. **Study or declaration** — the developer files an **Environmental Impact Study (EIA)** — for projects with significant impacts — or the lighter **Environmental Impact Declaration (DIA)**.
2. **Citizen participation (participación ciudadana, PAC)** — for an EIA there is always a participation stage (and for a DIA if the community requests it); **your observations must be admitted and answered by the developer in its addenda. This is your key formal opening — file substantive observations.** Where an Indigenous people is affected, a **consultation (consulta indígena)** takes place.
3. **Decision** — the **Regional Commission** (or the SEA Executive Directorate) issues the **RCA** — approved, approved with conditions, or rejected.
4. **Challenge and enforcement** — an unfavourable process can be appealed; a granted permit can be challenged by **appeal to the Committee of Ministers** and then the **Environmental Court**, or by a **recurso de protección**; and once operating, the **SMA** can sanction breaches — up to **revoking the permit or closing the project**.

A **defective EIA, ignored observations, a missing consultation, or a breach of the RCA's conditions** are among the strongest grounds to refuse, overturn, or sanction a project.

The rulebook — the laws that decide the outcome

- **The Constitution** — the right to **live in an environment free from contamination** (Article 19 No. 8), and the **recurso de protección** (Article 20) to defend it.
- **Law 19.300 (the General Environmental Law)** — the **SEIA**, the **RCA**, the **citizen participation** stage, and the **Committee of Ministers** appeal.
- **Law 20.417** — which created the **Ministry**, the **SEA**, and the **SMA**.
- **Law 20.600** — which created the **Environmental Courts**.
- **ILO Convention 169 and the Indigenous Law — consultation.**
- **The Transparency Law (Law 20.285)** — the right to information — and the **Escazú Agreement** (access to information, participation, justice, and protection of defenders), which Chile has ratified.

Follow the money — why the system often leans toward “yes”

- **Chile depends heavily on mining** — it is the world's top copper producer — plus forestry, salmon, and energy, so there is strong pressure to approve extraction and infrastructure.
- **Regions and municipalities** compete for investment and jobs.
- **The environmental study is prepared by the developer's own consultants**, so it tends to read in the project's favour.
- Many projects that reach a decision are approved, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The Environmental Courts (Tribunales Ambientales)** — three specialised courts that review permits, Committee-of-Ministers decisions, and SMA sanctions; then the **Supreme Court**. The **Courts of Appeal and Supreme Court** also hear the **recurso de protección**.
- **The SMA** — the enforcer that supervises compliance and sanctions breaches.
- **The oversight bodies** — the **Comptroller General (Contraloría General de la República)** (legality and audit), the **Public Prosecutor (Ministerio Público / Fiscalía)** (criminal), and the **Council for Transparency (Consejo para la Transparencia)** (information) (see Section 11).

The Clock — Every Deadline That Matters

The process runs on short, unforgiving windows, and one principle governs them all: **object early and comprehensively**. Arguments never placed in the participation record are far weaker later — points not raised in the public windows can be barred or discounted — so file everything, in every window, and keep every receipt. Confirm each figure below against the actual notice or with counsel the day it becomes relevant; notices set the live dates.

Stage	Your window	The trap
PAC — citizen participation (EIA)	60 working days	Observations never filed can’t ground the later reclamación
PAC on a DIA	20 working days where granted — demand it	DIAs slide through when nobody demands participation
Administrative reclamación (against the RCA)	30 days	Required step toward the Environmental Courts
Environmental Court challenge	Short — confirm with counsel the day the reclamación resolves	Assume weeks, not months
SMA compliance complaints	Any time — each violation, every time	Undocumented harms never happened
Transparency request	20 working days statutory response	Denials are appealable to the Consejo para la Transparencia

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Chile, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a defective **EIA, ignored citizen observations**, a missing **consultation**, or a breach of the **RCA** — carried through the **appeal, the Environmental Courts, or the SMA** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (CLP)	What “Success” Means
Documentation Only	5-10%	3-4 months	CLP 35 million	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	CLP 95 million	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	CLP 0-25 million	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	CLP 35 million	Public knows, but no action
Docs + Opposition	25-35%	12 months	CLP 130 million	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	CLP 155 million	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	CLP 190 million	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	CLP 130 million	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	CLP 230 million	Permit refused/revoked/sanctioned/modified or project halted

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: **citizen participation** and the **administrative appeal** are free, and complaints to the **SMA** are free; the specialised **Environmental Courts** need a lawyer but are designed to be accessible, and public-interest organisations (such as FIMA and Fundación Terram) and university legal clinics take these cases, often at no charge. So the “Legal” figures are not a hard floor. The main cost is expert evidence.

STEP 1: TARGET IDENTIFICATION

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: “Environmental damage” But: “The dam would flood [X] hectares of rare forest and farmland and the habitat of [named endangered species], and displace [number] families.”

Not: “Pollution” But: “The plant will emit [X] over the town of [name], already a heavily polluted ‘sacrifice zone’, and discharge into the [named] water body.”

Not: “Community harm” But: “The project crosses the territory of the [Indigenous people] without the **consultation** ILO 169 requires.”

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to a **protected area or species**, a **water source**, an **Indigenous territory**, or an already-overburdened community also opens a **specific legal front** — a defective EIA, a missing consultation, or a breach of the environmental-quality rules.

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The Regional Environmental Evaluation Commission** (or the SEA Executive Directorate) — for the **RCA**.
- **The SMA** — for compliance and sanctions once the project operates.
- **The affected Indigenous people** — whose **consultation** is required, and the **municipality** for local land use.

Write it down concretely: “The Regional Commission will decide the RCA after the EIA and the citizen participation. The project affects an Indigenous territory, so a consultation is required — and any RCA can be appealed to the Committee of Ministers and the Environmental Court.”

Question 3: What Specific Action Stops It?

Not: “Stop the project” But: “Persuade the Commission to reject the RCA, or win a reversal on appeal or at the Environmental Court” — or, if refusal is unrealistic, “obtain strict conditions and, once operating, hold it to them through the SMA.”

Not: “Protect the environment” But: “Show the **EIA** is defective, our **observations** weren’t answered, or the **consultation** was skipped, and appeal — and report any breach of the RCA to the **SMA**.”

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for the appeal body, the courts, or the enforcer to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **EIA/DIA** is filed, the **citizen participation** window, the consultation, the **RCA**, and the deadlines to **appeal** (to the Committee of Ministers) and to go to the **Environmental Court**. Don’t wait: file substantive observations during participation, request the documents early (use the **Transparency Law**), and be ready to appeal.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is the project a **strategic** mining or energy project (copper, lithium, a big power or transmission project), hardening political backing? - Is the **EIA** prepared and paid for by the developer’s own consultants only? - Does the region or municipality depend on the project for jobs and investment? - Is the developer a large mining or energy company with deep resources for studies, lawyers, and appeals? - Does the project affect **Indigenous** land, raising consultation and rights questions (and, in some areas, conflict)?

Why this matters: if strong strategic backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — HidroAysén was a huge, well-backed project and it fell — it means realistic expectations and a focus on the **EIA**, the **observations**, the **consultation**, and the **RCA conditions**, on the appeal and the courts, and on the **SMA**, rather than a straight political refusal.

Plug these in — where to find and track the file:

Integrity and anti-corruption: the **Public Prosecutor (Ministerio Público / Fiscalía)**; the **Comptroller General (Contraloría General de la República)**; the **lobby registry**.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together — and, in Chile, well-documented **citizen observations** are not just persuasion: if they are ignored or badly answered, that becomes a legal defect in the permit.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: documentation of existing conditions BEFORE the project begins — including the species, ecosystems, water, and communities present.

Why it matters: developers claim "the site is low-value" or "the impact is minor." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — Patagonia Sin Represas and the HidroAysén dams

Two energy companies proposed **HidroAysén** — five megadams on the wild **Baker and Pascua** rivers in **Aysén**, Patagonia — which would have flooded thousands of hectares of rare forest and farmland and the habitat of the endangered **huemul** deer, and required a transmission line running most of the length of the country. Its backers treated the dams as a done deal — "it's dams or coal." The opposition made that impossible. A broad coalition, the **Consejo de Defensa de la Patagonia**, under the banner **Patagonia Sin Represas**, documented what was at stake and, critically, the **serious flaws and omissions in the developer's environmental study** — flaws so significant that the study needed three rounds of corrections, and the community filed **over 10,000 observations**.

It changed the outcome. Although the permit was approved in 2011 — and even survived a Supreme Court challenge in 2012 — the campaign kept building, and in June 2014 the **Committee of Ministers cancelled the environmental permit**, "siding with the complaints presented by the community." It became the largest environmental victory in Chile's history. The documented case — the flawed study, the thousands of observations, the value of what would be lost — was what won. (Honesty matters here: this took some seven years, the permit was approved and even upheld once before it was overturned, and the win had to be built and defended the whole way.)

Why it matters for you: the Patagonia campaign's documentation — of the flawed study and what the dams would destroy — was decisive. Documenting existing conditions, and the gaps in the developer's study, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the site is low-value and baseline cannot be reconstructed later. A workable approach: surveys across at least a season cycle — more if you can — of the project area plus reference sites; a **species and ecosystem inventory** with GPS locations, flagging anything protected or endangered that the developer's **EIA** omitted; a record of who lives on and uses the land, and whether it is an **Indigenous territory** (the basis of a **consultation** right); the **water sources** the community depends on; proximity to any protected area; and water and air baselines (vital in Chile's "sacrifice zones"). Typical cost is around CLP 30-45 million for a qualified ecologist and hydrologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just “something bad” but “specifically THIS BAD in THIS WAY” — and it maps directly onto what the **EIA** must assess and what your **observations** will demand.

Use the developer’s own words and the legal tests. Powerful, documentable weak points in Chilean assessments include: - **A defective EIA.** The **study** must genuinely assess the significant impacts, alternatives, and mitigation. Omissions or understatements — as at **HidroAysén** — are a strong ground. - **Ignored or badly answered observations.** If the developer and the authority do not properly consider and respond to admissible **citizen observations**, that is a defect you can raise on appeal and at the Environmental Court. - **A missing or flawed consultation.** For an **Indigenous people**, a genuine **consultation** is required; its absence is a strong ground. - **A breach of environmental-quality rules or the RCA’s conditions.** Especially in overburdened areas, exceeding the norms — or, once operating, breaching the RCA — is enforceable by the SMA.

Convert each of the developer’s admissions (“temporary disturbance,” “limited effect”) into a quantified prediction against your baseline, and into a specific **observation**.

Outcome (illustrative): a defective **EIA**, ignored **observations**, or a missing **consultation** can lead the appeal body or the Environmental Court to refuse or overturn the RCA; a breach can lead the **SMA** to sanction, suspend, or close the project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of the human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. “X hectares affected” matters less than “an estimated 45 additional respiratory cases a year, and CLP X of health cost” — or “the farming, fishing, and tourism that sustain [number] families destroyed.”

Method: use recognised air-quality, water, or noise modelling and the public-health literature to translate the project into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases (a central issue in Chile’s polluted zones), lost farming, fishing, and tourism income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a region or the national government, feed the appeal and the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a qualified ecologist and hydrologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND species/ecosystems, human occupation, Indigenous-territory status, and water.

Deliverable: a 20-30 page baseline report with inventory, a record of use and rights, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIA** and the file (use the **Transparency Law**); identify specific impacts; test the study against the rules; turn each defect into a formal **observation**. **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, the developer’s own admissions quoted back, and a set of citizen observations.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the permit.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the courts, and the public.
- **No independent check.** A report the authority can dismiss as “activist material” is far stronger after an independent expert or a university reviews it.
- **Vague observations.** File **specific, technical observations** during participation — they must be answered, and unanswered ones become legal grounds.

- **Ignoring the developer’s own admissions.** Their **EIA** is your best source; quote it against itself. Use the **Transparency Law** to get it and the file.

Documentation Budget Breakdown (CLP)

Item	Cost	Notes
Ecologist + hydrologist (baseline + species/water)	CLP 28 million	Endangered species and water — the key levers
GPS / survey equipment	CLP 2 million	Mapping/documentation
Water/air testing	CLP 5 million	Sampling across seasons (vital in polluted zones)
Independent / university expert review	CLP 4 million	Credibility
Printing / information requests / translation	CLP 1.5 million	Copies (and Mapudungun/Aymara where relevant)
TOTAL	CLP 40.5 million	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Critical Insight About Organising

Most opposition campaigns fail not because they can’t build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it. (Patagonia Sin Represas held together for seven years — that endurance is what won.)

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don’t join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: “What’s your biggest concern about this project?” Listen — don’t pitch. Ask what they’d be willing to do. Each person has a different concern (land, water, health, fishing, the territory, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern.: - **Land/livelihood group** — farming, fishing, displacement and compensation - **Water group** — the rivers, glaciers, and aquifers, and water rights - **Health group** — air and water quality (central in Chile’s “sacrifice zones”) - **Rights group** — **Indigenous territory and consultation** (led by the community) Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use the Community’s Own Structures and Register a Vehicle

Two things matter. First, Chilean communities have real structures — the **neighbourhood council (junta de vecinos)**, water committees (comités de agua potable rural), fishing unions (sindicatos), and, for Indigenous peoples, their **communities and associations (comunidades y asociaciones indígenas)** whose authorities hold the **consultation** right; a clear, recorded community position carries weight. Second, forming a **non-profit corporation or foundation (corporación or fundación)** — or partnering with an established one — lets you speak publicly, receive donations, and support litigation. Partner with organisations such as **FIMA, Fundación Terram**, or **Chile Sustentable** early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (asamblea / cabildo)

Hold a community assembly (**asamblea** or **cabildo**) where people set out their concerns to themselves, to the local authorities, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in plain Spanish (and the relevant Indigenous language). Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the municipality, churches, health posts; post a digital version. Cost: ~CLP 2 million.

Step 2c: Citizen Participation — File Substantive Observations (the decisive record)

This is the pivotal Chilean moment. During the **citizen participation (PAC)** stage, **turn people out to file admissible, substantive observations**, each raising real grounds — a defective EIA, harm to water or species, a missing consultation, health effects in an already-polluted area. **These observations must be answered by the developer and the authority** — and if they are ignored or badly answered, that becomes a legal ground on appeal and at the Environmental Court. Prepare a template observation people can adapt (see Section 9, 9C) and help them file it. Where an Indigenous people is affected, insist the **consultation** be genuine. Cost: ~CLP 1.5 million.

Step 2d: Media Coverage at Launch

Release data + observations + the recorded community position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — **FIMA, Fundación Terram, Chile Sustentable, Greenpeace Chile, ONG FIMA/Defensa Ambiental**, local environmental committees, university law and science clinics, Indigenous communities and associations, fishing unions and water committees, the church, and businesses (especially tourism) that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **FIMA / a legal clinic:** "We need help with the observations, the appeal, and a possible Environmental Court case — can you assist?" - **A university group:** "Would your researchers assess the water, species, or health impacts independently?" - **An Indigenous community:** "Help us insist on a genuine consultation and record the community's position." - **Fishing unions / water committees / tourism businesses:** "This takes the water and coast we depend on — will you object and speak?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, security protocols, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: the environmental and legal analysis to the NGO/university; the Indigenous territory and consultation to the community; the water and health case to those groups; media to whoever has the contacts; the legal track to the law group. Sequence activities so each builds momentum (coalition launch → data release → citizen observations → appeal).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (marches / manifestaciones)

Regular, same time and place, growing attendance — outside the SEA, the regional government, or in the town square. Handle logistics and **safety**: any required notice, marshals, accessibility, a sound system, and a safety protocol (Section 9). Momentum matters: "50 gather" becomes "gathering grows to 5,000" — Patagonia Sin Represas drew some of the largest environmental marches in Chile's history.

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (observations filed → expert finding → coalition growth → march → appeal filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator; schedule breaks; keep a public progress tracker. The campaigns that endure — like Patagonia Sin Represas, which held for years — are the ones that win.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that Indigenous communities decide by their own authorities — and be alert to developers trying to split a community with jobs or “compensation”; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (a coalition formed, thousands of observations filed, a large march, the appeal filed, an SMA investigation opened) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (CLP)

Item	Cost
Factsheet printing	CLP 4 million
Website/phone/data (annual)	CLP 3 million
Meeting / venue costs	CLP 5 million
Outreach travel (often remote areas)	CLP 8 million
Observation / documentation materials	CLP 1.5 million
Demonstration supplies (banners, sound)	CLP 7 million
Coalition meeting costs	CLP 5 million
Part-time coordinator (12 months)	CLP 45 million
Social-media / content (part-time, 3 months)	CLP 10 million
Fundraiser/event / security costs	CLP 5 million
TOTAL	CLP 93.5 million

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A non-profit can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~CLP 45 million; and participation, the appeal, and SMA complaints are free, with organisations like FIMA often acting at no charge.

STEP 4: LEGAL CHALLENGES — PARTICIPATION, THE APPEAL, THE COURTS, AND THE ENFORCER

Plug these in — who fights beside you (many free of charge):

Legal help and organising: - **FIMA (ONG Fiscalía del Medio Ambiente)** — Chile’s leading public-interest environmental-law organisation. - **Fundación Terram** and **Chile Sustentable** — environmental policy and advocacy; **Greenpeace Chile**. - The **Consejo de Defensa de la Patagonia** and local environmental committees; university legal and science clinics; Indigenous communities and associations.

Transparency: the **Transparency Law (Ley 20.285)** (the law giving the right of access to public information, overseen by the Council for Transparency) — request records from any authority; complain to the **Council for Transparency (Consejo para la Transparencia)** (consejotransparencia.cl) if refused.

The decision, the challenge, and the enforcer: - The **RCA** via the **SEA** (sea.gob.cl) and the Regional Evaluation Commission; the **appeal** to the **Committee of Ministers**. - The **Environmental Courts (Tribunales Ambientales)** (the

three specialised courts that review RCAs, Committee-of-Ministers decisions, and SMA sanctions, and hear environmental-damage claims) and the **Supreme Court**; the **recurso de protección** before the Courts of Appeal. - The **Superintendency of the Environment (SMA)** (sma.gob.cl) — file a complaint (*denuncia*) about a breach.

Protection and human rights: the **National Human Rights Institute (INDH)** (indh.cl); defender and Indigenous-rights organisations; and the protections of the **Escazú Agreement**. Report threats and charges, and seek support, early.

- General or less specialised representation: 25-35%
- **A key advantage: citizen participation**, the **administrative appeal**, and **complaints to the SMA** are free and need no lawyer; the specialised **Environmental Courts** need a lawyer but are designed to be accessible, and public-interest organisations (FIMA, Fundación Terram) and university clinics take these cases, often at no charge.

Chilean legal strategy has three tracks, and its institutional toolkit is unusually rich: an assessment process, an administrative appeal, specialised courts, and a powerful enforcer.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before the courts.

- **File substantive citizen observations.** During the **citizen participation (PAC)** stage, submit **admissible, technical observations** — a defective EIA, harm to water or species, a missing consultation, health effects. **These must be answered**; ignored or badly answered observations become legal grounds.
- **Insist on genuine consultation.** For an **Indigenous people**, put on the record that the **consultation (consulta indígena)** must take place and be genuine (or record its absence).
- **Use the Transparency Law.** Request the **EIA**, the file, and the correspondence under **Law 20.285** — a strong, well-used access right (complain to the **Council for Transparency** if refused).

Why this track matters: filing substantive observations — specific, technical, on the record — often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3. In Chile, an unanswered observation is not just frustrating — it is a legal defect.

TRACK 2: THE EIA, THE OBSERVATIONS, THE CONSULTATION, AND THE RCA (the strongest cards)

Several grounds make this powerful.

- 1. A defective EIA, or ignored observations.** The **study** must genuinely assess impacts and alternatives, and the authority must properly consider and answer admissible **observations**. Defects here — as at **HidroAysén** — are strong grounds to overturn the permit.
 - 2. A missing or flawed consultation.** For an **Indigenous people**, a genuine **consultation** under ILO 169 is required; its absence is among the strongest grounds, and the courts have overturned permits for it.
 - 3. A breach of the RCA or the environmental-quality rules (SMA enforcement).** Once a project operates, breaching the **RCA's conditions** or the environmental norms — especially in overburdened areas — is enforceable by the **SMA**, which can **fine, suspend the permit, revoke it, or close the project**.
-

TRACK 3: THE APPEAL, THE ENVIRONMENTAL COURTS, THE ENFORCER, AND THE CONSTITUTION

Match the tool to the goal: - **The appeal to the Committee of Ministers (Comité de Ministros).** The **administrative appeal** against an RCA — free, and the route that **cancelled HidroAysén**. File it (with your observations as the backbone) before going to court. - **The Environmental Courts (Tribunales Ambientales).** The three specialised courts hear **challenges (reclamaciones)** against the RCA and the Committee-of-Ministers decision, against **SMA sanctions**, and **environmental-damage claims (demandas por daño ambiental)**; they can **overturn** a permit or a sanction. Appeals go to the **Supreme Court**. - **The environmental enforcer (SMA).** Anyone can **file a complaint (denuncia)** with the **SMA** about a breach of an RCA or the rules — free. The SMA investigates and can impose **finest, suspend the RCA, revoke the permit, or order definitive closure**. This is a distinctively powerful, and free, route once a project is operating (or building without permission). - **The recurso de protección.** For a **constitutional breach** — the right to live in an environment free from contamination (Art. 19 No. 8) — a **recurso de protección** before the **Court of Appeals** (and the **Supreme Court**) is a fast route; ask for an **interim order (orden de no innovar)** to halt works meanwhile.

Be realistic about three things. First, **strategic mining or energy projects** carry heavy national backing — so lead

with the cleanest legal ground (the **EIA**, the **observations**, the **consultation**). Second, a refused RCA can be **re-submitted** with a better study, and SMA sanctions can be appealed to the Environmental Court — so an early win may need defending. Third, the routes have different speeds: the **recurso de protección** is fast but narrow; the **appeal and the Environmental Courts** are thorough but slower; the **SMA** is powerful but its full process can take time — combine them.

Legal Strategy Decision Tree

START: Is the project in assessment, or does it have an RCA / is it operating?

- └ IN ASSESSMENT → File substantive CITIZEN OBSERVATIONS during participation (Track 1).
 - | Insist on consultation. Use the Transparency Law.
- └ RCA GRANTED → APPEAL to the Committee of Ministers; then the ENVIRONMENTAL COURT.
 - | Consider a RECURSO DE PROTECCIÓN if a constitutional right is breached.
- └ OPERATING/BUILDING WITHOUT PERMISSION → COMPLAIN to the SMA (denuncia).

Q1: What is the defect?

- └ Defective EIA / ignored observations → appeal + Environmental Court.
- └ Missing/flawed Indigenous consultation → appeal + Environmental Court (strong ground).
- └ Breach of the RCA / environmental norms → SMA complaint (fine/suspend/revoke/close).
- └ Constitutional breach (right to a clean environment) → RECURSO DE PROTECCIÓN.
- └ No real defect (lawful decision, you just disagree) → focus on opposition + media.

Q2: Are works imminent?

- └ YES → seek an INTERIM ORDER (orden de no innovar) via the recurso de protección, or ask the SMA/Environmental Court for a suspension.

Q3: Budget?

- └ CLP 0 → Observations, the appeal, and SMA complaints are FREE.
- └ CLP 0-12M → Environmental Court case with a public-interest lawyer + expert evidence.
- └ CLP 12-25M → Full case + expert witnesses, combined with opposition + media.

RECOMMENDED PATHS

Path A – Clear defect: observations → appeal → Environmental Court, + SMA complaint if operating, + media. Highest ceiling.

Path B – Arguable but not clear-cut: build opposition + media; file observations; litigate if a defect crystallises.

Path C – No legal defect: don't litigate. Win it politically, on the record, and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — a defective **EIA**, ignored **observations**, or a missing **consultation** — can exceed these, though a re-submitted project may return.

An appeal body, a court, or the SMA that sees a genuine defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Filing vague observations.** Specific, technical observations must be answered — vague ones don't build the case.
- **Skipping the appeal.** The Committee-of-Ministers appeal is free and is the route that stopped HidroAysén — use it before the courts.
- **Forgetting the SMA.** Once a project operates, a free complaint to the enforcer can lead to fines, suspension, or closure.
- **Weak grounds.** “This project is harmful” is an opinion, not a legal ground. “The RCA ignored our documented observations on the water supply, and no Indigenous consultation was held” is a ground the appeal body and the courts can act on.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Chile has a national press, a strong investigative-journalism sector, active regional and community media, and very heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. Patagonia Sin Represas became a national and international story, drew some of the largest marches in Chile's history, and helped turn

a “done deal” into a defeat.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it’s happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don’t care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad**: “Residents oppose the project.” (no data, no specific consequence, nothing new) → ignored. - **Good**: “Documents obtained under the Transparency Law show the EIA never modelled the impact on the town’s water, and 4,000 citizen observations went unanswered; the community has appealed; a ruling is due.” → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and regional media** and community radio — the audience that reaches your municipal and regional officials.
- **National outlets** — *El Mercurio*, *La Tercera*, *El Mostrador*, and *BioBioChile* — for projects with wider significance.
- **Investigative outlets** — **CIPER** and *Interferencia* — for deeper reporting on permits, money, and the environment.
- **Social media** — powerful in Chile — plus international outlets for landmark cases (as at HidroAysén).

Building Reporter Relationships (The Key)

Reporters don’t ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, mining/energy, Indigenous-rights beats). **Contact** them first: “I saw your piece on [similar story]. We’ve got a similar situation in [place] and I think your readers should know.” Then keep the relationship warm over months — a relevant article, a Transparency-Law document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (the citizen observations / the flawed study)
- Month 3: press event releasing the survey/document findings; expert available
- Month 4: coalition announcement
- Month 5: march coverage
- Month 6: appeal/ruling coverage

Real Media Dynamics (Chilean grounding)

- **Coverage plus mobilisation shifts outcomes**: the HidroAysén fight combined years of organising, huge marches, and technical documentation with sustained national and international coverage that raised the political cost and helped overturn the permit.
- **Transparency-Law documents make stories**: a disclosure that contradicts the developer’s claims — an EIA that ignored the water supply, observations that went unanswered — is a gift to a reporter and to the appeal.
- **Independent evidence beats the developer’s study**: independent ecological, hydrological, or health analysis that contradicts an optimistic **EIA** lets the press write “experts dispute the developer’s figures,” and decision-makers take notice.

Plug these in — the outlets and desks that cover this beat:

Environmental and accountability media: *El Mercurio*; *La Tercera*; *El Mostrador*; *BioBioChile*; **CIPER**; *Interferencia*; and **Mongabay Latam**; plus regional and community media.

Media Measurement Track cumulative stories and reach month over month.

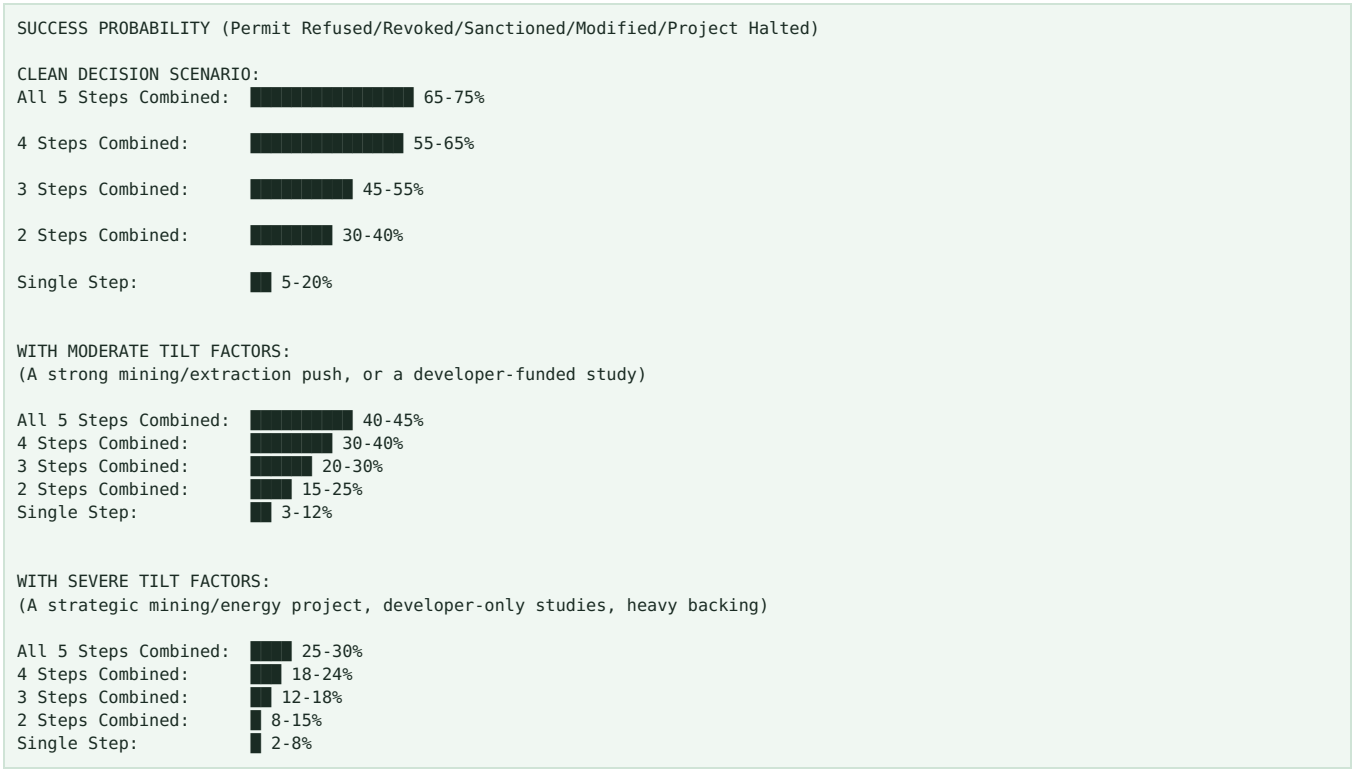
Success indicators: regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response.

Failure indicators: no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

HOW THE FIVE STEPS COMPOUND

Now that all five steps are on the table, here is how they stack — and which ones carry the most weight when combined.

Effectiveness Visualization



One important point: a single clear legal defect — a defective **EIA**, **observations that were never properly answered**, a missing **consultation**, or a serious breach of the **RCA** — can lead the **Committee of Ministers, the Environmental**

Courts, or the SMA to refuse, overturn, or sanction a project even where the politics favour it, because they are applying a legal standard the authorities cannot ignore. (A refused permit can be re-submitted with a better study, and sanctions can be appealed — so an early win may need defending.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3)		25%	Why: creates political pressure, visible to decision-makers, enables other steps
2. DOCUMENTATION (Step 2)		22%	Why: provides ammunition for the courts, the enforcer, and media; grounds opposition in facts
3. MEDIA STRATEGY (Step 5)		20%	Why: makes opposition/legal/documentation visible, creates political cost
4. LEGAL CHALLENGES (Step 4)		18%	Why: the appeal, the courts, and the SMA can refuse, overturn, or sanction
5. TARGET ID (Step 1)		15%	Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also filed **substantive citizen observations** and, where relevant, insisted on genuine **consultation**, is far more powerful than perfect documentation or a brilliant legal argument standing alone — because ignored observations and a missing consultation are grounds a court can act on.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **citizen observation (8C)**, the **Transparency-Law request (8E)**, and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the authority / court] decides [date]
Estimado/a [Reporter],
I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.
In one line: [Transparency-Law documents / the unanswered citizen observations / an independent survey] show [quantified finding – e.g. "the EIA never modelled the impact on the town's water"], and [the Commission / the Committee of Ministers / the court] decides on [date].
Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / an Indigenous people]), and time-sensitive (decision [date]).
I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?
Saludos, [Name] – [Organisation] – [phone] – [email]

8B. Letter to the SEA, the Regional Commission, the municipality, or the SMA

Subject: [Reject / attach strict conditions to / investigate] [project] – [RCA / file] [ref]

To [the Director of the SEA / the Regional Environmental Evaluation Commission / the Mayor / the Superintendent of the Environment (SMA)],

I am a resident of [place] writing about the [project], on which a decision (the RCA) is expected around [date] [or: which is operating in breach of its RCA].

The concern, briefly: [one or two specific grounds – e.g. "the EIA ignores the impact on the town's water and the community's observations went unanswered; no Indigenous consultation was held"] [or, to the SMA: "the project is breaching conditions X and Y of its RCA"].

I am asking you to [specific, achievable action – e.g. "reject the RCA," "require strict conditions," or – to the SMA – "investigate and sanction the breach"].

[If true:] [#] residents filed observations; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Atentamente,
[Name], [address], [phone], [email]

8C. Citizen observation (PAC) + recorded community position

PART A – CITIZEN OBSERVATION (participación ciudadana)
To: [the SEA], re [project], file [ref]

OBSERVATION on the [project], filed within the citizen-participation period.

1. Who I am: [name], [address], [how I am affected].
2. Observations (admissible and substantive, with evidence):
 - a. [Defective EIA] – the study omits [impact], understates [impact], and ignores [the water source / species] documented here.
 - b. [Consultation] – the project affects the [Indigenous people]; the consultation ILO 169 requires has not taken place.
 - c. [Water / health] – the project threatens [water source] / worsens pollution in [already-overburdened area].
3. I request that the RCA be REJECTED; alternatively, [strict conditions and a redesign]. These observations must be admitted and answered.
[Name] – [signature] – [date] – Attachments: [baseline / impact / health report]

PART B – RECORDED COMMUNITY POSITION (assembly / Indigenous community)
"The [community / Indigenous community], through its assembly / its authorities, records that it OPPOSES the [project] and does not consent to it, for the following reasons: [rights / water / livelihood / health]. Recorded [date], [who was present / how decided]."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Estimado/a [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us with the observations, the appeal, and a possible Environmental Court case," or "have your researchers assess the water impacts independently," or "help us insist on a genuine Indigenous consultation"].

If helpful, I can send a one-page brief and arrange a short call.

Con gratitud,
[Name] – [Organisation] – [contact]

8E. Transparency-Law request (the transparency tool)

To: [the SEA / the SMA / the authority], Attn: the Transparency Office

REQUEST UNDER THE TRANSPARENCY LAW (Ley 20.285)

Under the Transparency Law, I request the following concerning [project] (ref [ref]):

1. The Environmental Impact Study (EIA) or Declaration (DIA) and the RCA (with conditions).
2. The record of the citizen participation and the responses to the observations.
3. For an Indigenous people: the consultation record.
4. The technical/sector reports and the authority's reasons for its decision.
5. For an operating project: the SMA's inspection and compliance reports.
6. The correspondence between [the authority] and [the developer], [dates].

Please respond within the legal timeframe. If any information is refused, please state the legal basis; I may complain to the Council for Transparency.

[Name] – [address] – [date]

8F. Legal challenge — appeal / Environmental Court / SMA complaint / protección (get advice)

NOTE: The APPEAL to the Committee of Ministers, and a COMPLAINT (denuncia) to the SMA, are FREE. The ENVIRONMENTAL COURT (reclamación) needs a lawyer. The RECURSO DE PROTECCIÓN is fast for a constitutional breach — ask for an INTERIM ORDER (orden de no innovar). Deadlines are short — get advice.

[ADMINISTRATIVE APPEAL — to the Committee of Ministers]

Against RCA [ref], dated [date]. Grounds: [defective EIA]; [observations not answered]; [no Indigenous consultation]. Relief: that the RCA be left without effect.

[ENVIRONMENTAL COURT — reclamación (with a lawyer), if the appeal fails]

Against [the Committee-of-Ministers decision / the SMA sanction]. Grounds as above.

[SMA COMPLAINT — denuncia, for an operating/unpermitted project]

The [project] is [operating without an RCA / breaching conditions X, Y]. I request an investigation and sanctions (fine / suspension / revocation / closure).

[RECURSO DE PROTECCIÓN — for a constitutional breach, to the Court of Appeals]

The [project / act] violates the right to live in an environment free from contamination (Art. 19 No. 8). Relief: protection + an INTERIM ORDER (orden de no innovar) to halt the works meanwhile.

[Name / counsel] — [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]

[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD — answer "why now?"]

[Local organisation] released [study / Transparency-Law documents / the unanswered citizen observations] today showing [specific finding] affecting [# of people / hectares / an Indigenous people].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE — specific, from a credible voice, not a slogan]

"[What the finding means]," said [Name, Title].

[CONTEXT — why it matters; reference a documented case where relevant]

[DECISION POINT — create urgency]

[The Commission / the Committee of Ministers / the court] decides on [date].

[CALL TO ACTION] To support or add your observation: [how].

For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, Transparency-Law documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, citizen observations, the Committee-of-Ministers appeal, the

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because Chile depends heavily on mining and other extraction, because regions and municipalities want investment and jobs, or because the developer's own consultants prepare the environmental study. It rarely means anyone broke the law. Here is how the tilt works — and how communities win anyway. **In Chile, this section also carries an important safety note, above all about the criminalisation of land defence.**

Important Caveat

This section describes patterns from documented Chilean dynamics and public policy — mining-and-extraction pressure, developer-funded studies, most projects approved, and “strategic” designations. It is not a statistical claim about “X% of all decisions.” Read it as: “where these patterns appear, here is what happens and what it means for opposition.”

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (mining, energy, jobs, investment, and now the lithium/critical-minerals push); bias information (the **EIA** is commissioned by the developer, and reads optimistically); advantage well-resourced developers; and, for a **strategic** project, bring heavy political backing. **DOESN'T:** guarantee approval; make opposition impossible; remove the **citizen-participation** right or the duty to answer observations; remove the **consultation** right; remove the **appeal**, the **Environmental Courts**, or the **SMA**; or prevent refusals, sanctions, conditions, and delay. **HidroAysén was a strategic, well-backed project — and it fell.**

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your observations more technical, your legal grounds cleaner, and your document paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary permit with genuine scrutiny; no strategic label; a clear defect; a protected area or species, a water source, or an Indigenous territory engaged. → 65-75% with all 5 steps. Proceed with standard opposition — mindful of safety.

YELLOW FLAG (moderate tilt): a mining/extraction push and a developer-funded **EIA**, but independent evidence is possible and a legal ground (EIA, observations, consultation) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the consultation and water grounds, and use the SMA once operating.

RED FLAG (high tilt): a **strategic** mining or energy project, developer-only studies, heavy political backing — and, in some areas, conflict over Indigenous land. → 25-30% to stop; 50-60% to modify/delay. Weigh whether delay/conditions justify the investment **and the risk**; lead with the cleanest ground; build power and a record for the next round.

Direct Action and Safety: The Criminalisation Note

When permit and legal routes are exhausted, some Chilean communities have used non-violent direct action — marches, blockades, and occupations. This is descriptive of what has occurred, not guidance — and in Chile it comes with a real safety warning.

Chile is safer for defenders than the most dangerous countries in the region, and its courts, enforcer, and participation rights are genuinely usable — but the risks are real, and sharpest around the criminalisation of land defence. In the south, the long-running conflict over **Mapuche** land (in Araucanía and Biobío) has seen militarisation, states of emergency, violence, and the use of security and anti-terrorism laws against Mapuche activists — a serious, well-documented pattern of **criminalisation**. Elsewhere, environmental defenders — including in heavily polluted “sacrifice zones” — have faced criminalisation, defamation suits, and threats. Take the risks seriously: **keep everything strictly non-violent and lawful; never act alone; agree a security and legal-support protocol from the start; line up criminal-defence lawyers in advance (criminalisation is the likeliest legal threat); document everything; and connect early to human-rights bodies — the National Human Rights Institute (INDH) and defender and Indigenous-rights organisations — and use the protections of the Escazú Agreement, which Chile has ratified and which obliges the state to protect defenders. If you are charged, threatened, or detained, treat it as urgent: contact a lawyer and the INDH immediately, and document everything.** Direct action has drawn attention

and delay in documented cases, but on its own rarely stops a project permanently; combined with documentation, the observations, the appeal, the courts, the SMA, and media, it is far more consequential — and safer.

A security-culture note — the aboveground/underground line. Security writers in the resistance literature draw one hard distinction that everyone weighing any form of action should understand. Everything in this guide — the filings, the coalitions, the hearings, the media work — is **aboveground** organizing, and it only works in the open: “There is no way to effectively do aboveground work and keep your identity hidden... Aboveground movements can only build numbers and public solidarity by being public, open, and expressing support of the movement” (dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/). The same literature is equally blunt about the choice itself: “every person in a resistance movement must decide for her- or himself whether to be aboveground or underground. It is essential that this decision be made; to attempt to straddle the line is unsafe for everyone” (dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/). Whatever any individual decides, mixing the two modes endangers both that person and everyone organizing beside them — an aboveground campaign is safest, strongest, and most credible when it is exactly what it appears to be.

Honest Assessment

Where the system is tilted, opposition using permit and legal methods has lower odds of an outright stop — but still reliably wins refusals, sanctions, or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record. And Chile offers genuine equalisers: a formal **citizen-participation** right whose observations must be answered; an **administrative appeal** that cancelled HidroAysén; specialised **Environmental Courts**; a powerful, free **enforcer (the SMA)** that can fine, suspend, revoke, and close; and the **recurso de protección** for a constitutional breach. HidroAysén proves a strategic project can be stopped. Neither scenario makes opposition futile — but in Chile, do it safely.

SECTION 10: WHEN IT’S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision.

How big is the problem? The most widely cited figure comes from the World Economic Forum: corruption costs at least **US\$2.6 trillion a year — about 5% of global GDP** — a figure cited before the UN Security Council. Because it is a percentage, the dollar amount grows with the world economy: applied to 2022 global GDP (~US\$101 trillion) it works out to roughly **US\$5 trillion a year**, and a January 2026 Baker Tilly analysis, with global GDP projected at ~US\$115 trillion for 2025, puts it at approximately **US\$5.75 trillion annually**. Roughly one dollar in twenty moving through the world’s economy is lost to corruption — and infrastructure, land, and extractives are where it concentrates.

Context matters here. Chile is consistently ranked among the **least corrupt countries in Latin America**, and outright bribery of the officials who decide permits is not the norm — though the country has lived through serious scandals (in campaign financing, procurement, and public institutions). That is relatively good news — but it does not mean improper influence never happens. What is more realistic here is an **undisclosed conflict of interest**, the **revolving door** between the regulators and the mining and energy industries, or **lobbying** influence over a decision. Chile’s strong transparency and audit institutions make these unusually exposable.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery (cohecho) and abuse of office** (offences under the Criminal Code) — money or favours in exchange for a permit or a favourable decision, or a public servant abusing office for gain.
- **Bought permits or favourable decisions** — an RCA, a water right, or a concession granted in exchange for a benefit.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **The revolving door and lobbying** — officials moving between the regulators and the mining/energy industry, or improper lobbying influence (Chile has a **lobby law and registry** you can check).
- **Improper campaign financing or benefits** flowing from a developer to decision-makers.
- **Manipulated studies** — an **EIA** or expert report skewed or falsified.
- **Insider dealing** — acquiring affected land or water rights using non-public knowledge of a coming project.

Red flags to watch for

- A permit granted despite strong objections and expert concerns, with thin or shifting reasons, and **observations left unanswered**.
- A decision-maker who did not step aside despite a personal interest.
- Sudden reversals, rushed timelines, or a project quietly changed to suit the developer.
- Gifts, hospitality, campaign funding, or lobbying contacts (check the lobby registry) flowing from the developer to decision-makers.
- A decision-maker — or a relative — owning affected land, water rights, or a stake in the developer.
- The same small circle of firms, consultants (EIA preparers), and officials recurring across permits.
- Transparency-Law requests met with delay or heavy withholding.

How to document and investigate it (follow the money)

- **Transparency-Law requests** for the file, the responses to observations, contracts, and correspondence.
- **The lobby registry and campaign-finance records** — who lobbied and who funded whom.
- **The Comptroller's (Contraloría) reports** on the authority or project.
- **Company, land, and water-rights records** — who owns/holds the affected land and water and who profits.
- **Officials' declared interests**, and the file — compare the decision to the technical reports and the declarations.
- **Build a timeline:** interest, benefit, lobbying contact, or meeting → decision. Corruption is almost always shown by **pattern and timing**, not a confession.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, a permit granted through a process tainted by corruption, an undisclosed conflict, or a **decision the Comptroller finds unlawful** can be **overturned** — by the Comptroller, the appeal, or the Environmental Court — without a criminal conviction. Second, the offences are pursued by the **Public Prosecutor (Fiscalía)**. So documenting a tainted process can be both a **ground to undo the permit** and a matter for the prosecutors and the Comptroller.

Where to report it

- The **Public Prosecutor (Ministerio Público / Fiscalía)** — for the criminal offences.
- The **Comptroller General (Contraloría General de la República)** — for the legality of the decision and the use of public funds.
- The **Council for Transparency** — for wrongful secrecy.
- **Investigative outlets** (such as **CIPER** and *Interferencia*) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers scrutiny or an investigation; it can get the permit overturned; it flips media coverage from “local dispute” to “scandal”; it splits the political support behind the project; and it damages the developer’s standing and financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation.** Chile has criminal **defamation** offences (injurias, calumnias); accusing a named person of a crime you cannot prove is risky. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Fiscalía / Contraloría in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers.** Keep identities confidential and stay connected to legal networks.
- **Don't cry “corruption” without evidence.** In a relatively low-corruption country especially, calling ordinary, lawful bias (Section 9) “corruption” destroys your credibility and can expose you to a case. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map species, water, and Indigenous-territory use (Step 2); convene the community and form or partner with a vehicle (Step 3); file first **Transparency-Law** requests, prepare for **citizen participation**, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; asamblea + **substantive citizen observations** during participation + **recorded community position** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, observations on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **EIA** and the **consultation** (Step 2); expand the coalition and bring in a law group (Step 3); prepare the **appeal** grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained marches (Step 3, safely); the RCA decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Litigation: marches escalating, safety maintained (Step 3); file the **appeal to the Committee of Ministers**, then the **Environmental Court**; complain to the **SMA** if it is building/operating; seek an **interim order** if works are imminent (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live, project possibly suspended.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); the ruling / positioning, and watch for a **re-submitted project** after any refusal (Step 4); media momentum (Step 5). *Outcome:* participation + opposition + media + law + enforcement compound; refusal, sanction, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — “the EIA ignored the impact on the town’s water and 4,000 observations went unanswered,” not “we oppose the project.”
2. **Multi-tactic pressure** — observations + consultation + opposition + media + appeal + SMA, together.
3. **Long-term organising — safely** — sustain 12+ months; prevent burnout; protect land defenders; Patagonia Sin Represas held for seven years and won.
4. **Documentation first** — build the evidence, then file substantive observations and litigate on them.
5. **Coalition building** — 5-10 diverse groups; respect Indigenous communities’ own authorities.
6. **File substantive observations and use the SMA** — unanswered observations become legal grounds, and the enforcer can fine, suspend, revoke, and close.
7. **Appeal before you go to court, and seek interim orders** — the Committee-of-Ministers appeal is free and stopped HidroAysén.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or sanction is the bonus; expect strategic backing and possible re-submission.
9. **Persistence and safety** — plan for 12-24 months, keep momentum, and protect organisers from criminalisation.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout or fear); coalition members leaving or being co-opted with jobs or “compensation”; no media coverage for 2-3 months; the case stalling or a project re-submitted after a refusal; fundraising below half your target by month 6; a core organiser leaving without a successor; **charges, threats, or intimidation** against organisers (treat as urgent — see Section 9); or someone new pushing unlawful or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Permit refused / project shelved** (rarer, but real): usually needs overwhelming opposition + a strong EIA or consultation case + heavy media + lower tilt. HidroAysén (the permit cancelled) shows a strategic project can be stopped — and also shows a win can take years and must be defended.
- **Permit modified, or the project sanctioned** (most common victory): strict conditions, real compensation, buffers, independent monitoring, redesign — via the appeal or the court; or, once operating, **fines, suspension, or closure by the SMA**.

- **Delay / attrition:** tied up for years while the appeal and court cases run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes after a re-submission). Focus then shifts to holding it to its RCA through the SMA, monitoring, and the next opening.

Why It's Worth It — Even If You Ultimately Lose

Be honest with your community about the odds — and equally honest about what the “secondary” outcomes are actually worth, because they are not consolation prizes:

- **Conditions and monitoring protect bodies for decades.** Buffers, emission controls, closure funds, independent monitoring with public data — these are measured in children’s health and the water people actually drink, for the life of the project. Every binding condition you force is future harm partially averted.
- **Delay is real harm avoided — and real leverage.** Every year a project stalls is a year the land and the livelihoods run — and delay compounds against the proponent: financing costs, aging forecasts, expiring permits, changing governments. Some “delayed” projects simply never come back.
- **The organization outlives the fight.** The coalition, the trained monitors, the relationships with lawyers and journalists — that infrastructure fights the next application, the next route, the next permit renewal. Communities that fought “losing” battles are the ones that win the next one.
- **You change the rules for everyone.** Campaigns in this guide lost projects and won statutes, precedents, and reformed procedures the whole country then uses. Fighting at the level of one project builds law at the level of all of them.
- **You raise the price of the next project.** A proponent that spent years and a fortune on your fight prices community resistance into every future plan — and sometimes walks away before starting. Deterrence is invisible and real.
- **Compensation and dignity are not nothing.** Where harm proceeds, documented communities win remediation, compensation, and terms silent ones never see — and a community that fought knows itself differently afterward. Agency, once exercised, doesn’t un-learn.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live (especially the EIA, observations, and consultation), the record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, the security or criminalisation risk has risen, or you discover the project is being treated as strategic. **Reassess** if, after ~12 months (and perhaps an appeal, a court case, and an SMA complaint) permit and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, resources are gone — or if the danger to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, sanctions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to holding the project to its conditions through the SMA, to the next project, or to the policy? **And always: is it safe to continue?**

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Chile — even where mining, energy, and investment politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, in the courts, and through the enforcer. Where the system is tilted, an outright stop is less likely, but opposition still delivers refusals, sanctions, conditions, compensation, delay, and durable power.

And Chile offers genuine equalisers: a formal **citizen-participation** right whose observations must be answered; an **administrative appeal** — the route that cancelled **HidroAysén** — before the courts; specialised **Environmental Courts**; a powerful, free **enforcer, the SMA**, that can fine, suspend, revoke, and close; and the **recurso de protección** for the constitutional right to a clean environment. When a project truly cannot lawfully proceed, the appeal body, the courts, or the enforcer can refuse, overturn, or sanction it — as at **HidroAysén**, where the largest environmental struggle in the country’s history turned a “done deal” into a defeat. Such a win must then be defended — but it can be won.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine conflicts of interest and refer them to the prosecutors and the Comptroller. **Keep land defenders safe — criminalisation is the real risk in Chile.** Use the free participation, appeal, and enforcement routes to the full. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers, and together.

Nothing here is legal advice. Chilean environmental law is technical, deadlines are short, and organising — especially around Indigenous land — can carry a real risk of criminalisation. Get advice from a Chilean environmental lawyer or a public-interest organisation, and seek protection support where needed, before relying on this.

